

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
QUASEEM TALBOT,

Plaintiff,

-against-

THE CITY OF NEW YORK, DET. AMJAD KASAJI,
Tax Id. No. 939768, Individually and in his Official
Capacity, and POLICE OFFICERS "JOHN DOE" #1-
10, Individually and in their Official Capacity (the
name John Doe being fictitious, as the true names are
presently unknown),

Defendants.

-----X

SUMMONS

Jury Trial Demanded

Plaintiff designates Kings County
as the place of trial.

The basis of venue is:
CPLR § 504(3)

To the above-named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: NEW YORK, NEW YORK
February 3, 2020

COHEN & FITCH LLP
Attorneys for Plaintiff
225 Broadway, Suite 2700
New York, N.Y. 10007
(212) 374-9115

TO:

JAMES E. JOHNSON
Corporation Counsel of the City of New York
100 Church Street
New York, New York 10007

DET. AMJAD KASAJI, Tax Id. No. 939768
Brooklyn North Gang Squad
1 Police Plaza, Room 110C
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
QUASEEM TALBOT,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, DET. AMJAD KASAJI,
Tax Id. No. 939768, Individually and in his Official
Capacity, and POLICE OFFICERS "JOHN DOE" #1-10,
Individually and in their Official Capacity (the name John
Doe being fictitious, as the true names are presently
unknown),

Jury Trial Demanded

BASIS FOR VENUE:

CPLR § 504(3)

Defendants.

-----X

Plaintiff QUASEEM TALBOT by his attorneys, COHEN & FITCH LLP, complaining of
the defendants, respectfully allege as follows:

FACTS

1. Plaintiff QUASEEM TALBOT is an African-American male and has been at all
relevant times a resident of Nassau County in the State of New York.

2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly
organized and existing under and by virtue of the laws of the State of New York.

3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police
Department, duly authorized public authorities and/or police departments, authorized to perform
all functions of a police department as per the applicable sections of the New York State
Criminal Procedure Law, acting under the direction and supervision of the aforementioned
municipal corporation, The City of New York.

4. That at all times hereinafter mentioned, the individually named defendants, DET.
AMJAD KASAJI, Tax Id. No. 939768 and POLICE OFFICERS "JOHN DOE" #1-10, were duly

sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

5. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

The Incident

8. On or about February 22, 2019, in the County of Kings, City, and State of New York, plaintiff QUASEEM TALBOT was lawfully present in the vicinity of 364 Suptmer St. Brooklyn, NY.

9. At approximately 6:10 a.m. several members of the NYPD, including defendants KASAJI and/or POLICE OFFICERS "JOHN DOE" #1-10 entered the aforementioned location with their guns drawn, pointed them at plaintiff TALBOT and the other occupants therein, and began to yell at plaintiff TALBOT and said other occupants.

10. Subsequently, defendants KASAJI and/or POLICE OFFICERS "JOHN DOE" #1-10 accosted plaintiff TALBOT and immediately placed him under arrest by handcuffing his arms tightly behind his back.

11. Thereafter, plaintiff TALBOT was searched and detained in the living room of the above-mentioned location for a period of time. No contraband was found on plaintiff TALBOT nor recovered from his person or effects as a result of this search, nor did he have custody or control over any contraband.

12. In addition, defendants KASAJI and/or POLICE OFFICERS "JOHN DOE" #1-10 searched the above-mentioned premises.

13. Upon information and belief, the defendant police officers KASAJI and/or POLICE OFFICERS "JOHN DOE" #1-10, did not enter pursuant to a valid search warrant.

14. The defendant police officers KASAJI and/or POLICE OFFICERS "JOHN DOE" #1-10, did not provide a copy of said warrant to plaintiff or the occupants therein upon repeated requests.

15. Upon information and belief, the defendant police officers KASAJI and/or POLICE OFFICERS "JOHN DOE" #1-10, if they did possess a warrant, did not enter in a manner or at a time authorized in the warrant.

16. Upon information and belief, plaintiff TALBOT was not listed or described as a suspect or target on any application for any warrant.

17. In addition, defendants KASAJI and/or POLICE OFFICERS "JOHN DOE" #1-10, searched plaintiff TALBOT's person and effects without his consent or probable cause and/or reasonable suspicion.

18. At no time on February 22, 2019, did defendants KASAJI and/or POLICE OFFICERS "JOHN DOE" #1-10 possess probable cause and/or reasonable suspicion to search plaintiffs TALBOT's person or effects nor did they obtain voluntary consent from him to do so.

19. At no time on February 22, 2019, did defendants KASAJI and/or POLICE OFFICERS "JOHN DOE" #1-10 possess information that would lead a reasonable officer to believe probable cause and/or reasonable suspicion existed to search plaintiff TALBOT's persons or effects.

20. At no time on February 22, 2019, did defendants KASAJI and/or POLICE OFFICERS "JOHN DOE" #1-10 possess probable cause to arrest plaintiff TALBOT.

21. At no time on February 22, 2019, did defendants KASAJI and/or POLICE OFFICERS "JOHN DOE" #1-10 possess information that would lead a reasonable officer to believe probable cause existed to arrest plaintiff TALBOT.

22. At no time on February 22, 2019 did plaintiff TALBOT possess any marijuana and/or any other contraband, have custody and control over any marijuana and/or any other contraband, harass any person, nor did he commit any crimes or offenses or behave unlawfully in any way, nor was any evidence or contraband found on his person or in his effects.

23. Thereafter, plaintiff TALBOT was transported to a nearby police precinct where he was subjected to an invasive strip search, fingerprinted, photographed, questioned, confined against his will in a holding cell for several hours, and charged with crimes by defendants KASAJI and/or POLICE OFFICERS "JOHN DOE" #1-10. Specifically, plaintiff TALBOT was charged with Unlawful Possession of Marijuana and Harassment in the 2nd Degree.

24. After being detained at the aforementioned precinct for several hours plaintiff TALBOT was transported to Central Booking where he was searched, subjected to a retina scan, and further detained in holding cells for several hours.

25. In connection with plaintiffs' arrest, defendants KASAJI and/or POLICE OFFICERS "JOHN DOE" #1-10 filled out false and/or misleading police reports and forwarded

them to prosecutors at the Kings County District Attorney's Office. Thereafter, defendants KASAJI and/or POLICE OFFICERS "JOHN DOE" #1-10 repeated the aforementioned false and misleading information regarding the facts and circumstances of plaintiff's arrest. Specifically, defendants KASAJI and/or POLICE OFFICERS "JOHN DOE" #1-10 falsely stated, *inter alia*, that plaintiff TALBOT was found to be in possession of a quantity of marijuana and further falsely stated that plaintiff TALBOT stated, in sum and substance, that he would kill all of the officers and would kill the cop who got the warrant and that if plaintiff got locked up or taken downtown that he would kill that cop and that if the NYPD has guns that we have guns too.

26. As a result of the foregoing, plaintiff TALBOT spent approximately between sixteen (16) and twenty-four (24) hours in custody. Thereafter, plaintiff TALBOT made approximately five (5) court appearances before all charges against him were adjourned in contemplation of dismissal on or about July 30, 2019.

27. As a result of the foregoing, plaintiff TALBOT sustained, *inter alia*, loss of liberty, physical injuries, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of their constitutional rights.

FEDERAL CLAIMS

FIRST CLAIM FOR RELIEF

DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983

28. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

29. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

30. All of the aforementioned acts deprived plaintiff of his rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth

Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

31. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

32. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department, all under the supervision of ranking officers of said department.

33. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

**SECOND CLAIM FOR RELIEF ARISING
FALSE ARREST UNDER 42 U.S.C. § 1983**

34. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

35. As a result of the aforesaid conduct by defendants KASAJI and/or POLICE OFFICERS “JOHN DOE” #1-10, plaintiff was subjected to an illegal, improper, and false arrest by the defendants KASAJI and/or POLICE OFFICERS “JOHN DOE” #1-10, taken into custody, and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

36. As a result of the foregoing, plaintiff’s liberties were restricted for an extended period of time, he was put in fear for his safety, and he was humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.

THIRD CLAIM FOR RELIEF
UNLAWFUL SEARCH AND ENTRY UNDER 42 U.S.C. § 1983

37. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

38. As a result of the aforesaid conduct by defendants KASAJI and/or POLICE OFFICERS "JOHN DOE" #1-10 plaintiff's home and possessions were illegally and improperly entered without consent, a valid warrant, probable cause, privilege or consent, in violation of his constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

39. As a result of the aforesaid conduct by the defendants KASAJI and/or POLICE OFFICERS "JOHN DOE" #1-10, plaintiff's home was entered illegally at time not prescribed in the warrant, in violation of his constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

40. As a result of the aforesaid conduct by the defendants KASAJI and/or POLICE OFFICERS "JOHN DOE" #1-10, plaintiff was not provided a copy of said warrant upon his request, in violation of his constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

41. As a result of the aforesaid conduct by the defendants KASAJI and/or POLICE OFFICERS "JOHN DOE" #1-10, plaintiff was subjected to an illegal search and seizure pursuant to an invalid search warrant obtained with stale information, in violation of his constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

42. As a result of the aforesaid conduct by the defendants KASAJI and/or POLICE OFFICERS "JOHN DOE" #1-10, plaintiff was subjected to an illegal search and seizure

pursuant to an invalid anticipatory search warrant for which probable cause was lacking, in violation of his constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

43. As a result of the aforesaid conduct by the defendants KASAJI and/or POLICE OFFICERS “JOHN DOE” #1-10, plaintiff was subjected to an illegal search and seizure pursuant to an invalid search warrant issued upon an affidavit containing false or recklessly inaccurate information and/or which omitted information upon which a judge would have concluded there was no probable cause for its issuance, in violation of his constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

44. As a result of the aforesaid conduct by defendants KASAJI and/or POLICE OFFICERS “JOHN DOE” #1-10, plaintiff’s home and possessions were illegally and improperly searched without any warrant, probable cause, privilege or consent, in violation of his constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

FOURTH CLAIM FOR RELIEF
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL UNDER 42 U.S.C. § 1983

45. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

46. Defendants KASAJI and/or POLICE OFFICERS “JOHN DOE” #1-10 created false evidence against the plaintiff.

47. Defendants KASAJI and/or POLICE OFFICERS “JOHN DOE” #1-10 forwarded false evidence and false information to prosecutors in the Kings County District Attorney’s Office – namely, the defendants falsely informed prosecutors that plaintiff TALBOT was found

to be in possession of a quantity of marijuana and further falsely informed prosecutors that plaintiff TALBOT stated, in sum and substance, that he would kill all of the officers and would kill the cop who got the warrant and that if plaintiff got locked up or taken downtown that he would kill that cop and that if the NYPD has guns that we have guns too.

48. Defendants KASAJI and/or POLICE OFFICERS “JOHN DOE” #1-10 misled the prosecutors by creating false evidence against the plaintiff and thereafter providing the aforementioned false statements throughout the criminal proceedings.

49. In creating false evidence against the plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants KASAJI and/or POLICE OFFICERS “JOHN DOE” #1-10 violated plaintiff’s constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

50. As a result of the foregoing, plaintiff’s liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

FIFTH CLAIM FOR RELIEF
UNLAWFUL STRIP SEARCH UNDER 42 U.S.C. § 1983

51. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein

52. Plaintiff was invasively strip-searched by defendants KASAJI and/or POLICE OFFICERS “JOHN DOE” #1-10 without an individualized reasonable suspicion that plaintiff was concealing contraband based on the particular characteristics of the plaintiff and/or the circumstances of his arrest.

53. As a result of the aforesaid conduct by defendants KASAJI and/or POLICE OFFICERS “JOHN DOE” #1-10 plaintiff’s persons was illegally and improperly searched without consent, a valid warrant, probable cause, and a specific articulable factual basis supporting a reasonable suspicion and/or probable cause to believe plaintiff secreted contraband, evidence, or had a weapon and/or controlled substances and/or marijuana inside a body cavity warranting such a search, in violation of his constitutional rights as set forth in the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States.

54. As a result of the foregoing, plaintiff was deprived of his Constitutional rights and has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

SIXTH CLAIM FOR RELIEF
FIRST AMENDMENT VIOLATION UNDER 42 U.S.C. § 1983

55. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

56. By their conduct, as described herein, and acting under color of state law to deprive the plaintiff of his right to freedom of speech under the First and Fourteenth Amendments, defendants KASAJI and/or POLICE OFFICERS “JOHN DOE” #1-10 are liable for violation of 42 U.S.C. § 1983, which prohibits the deprivation under color of state law of rights secured under the United States Constitution.

57. Defendants KASAJI and/or POLICE OFFICERS “JOHN DOE” #1-10 violated plaintiff’s First Amendment rights to speech by unlawfully denying him the right to speak freely by subjecting him to false arrest to deter the exercise of his First Amendment rights.

58. Defendants KASAJI and/or POLICE OFFICERS “JOHN DOE” #1-10’s actions were taken in retaliation for plaintiff exercising his First Amendment rights against defendants KASAJI and/or POLICE OFFICERS “JOHN DOE” #1-10

59. As a consequence of defendants KASAJI and/or POLICE OFFICERS “JOHN DOE” #1-10’s actions, plaintiff suffered violations of his First and Fourteenth Amendment rights to free speech.

60. As a direct and proximate result of the defendants KASAJI and/or POLICE OFFICERS “JOHN DOE” #1-10’s unlawful actions, plaintiff has suffered damages including, loss of liberty, mental and emotional injury and pain, mental anguish, suffering, humiliation, embarrassment and loss of reputation.

SEVENTH CLAIM FOR RELIEF
MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

61. Plaintiffs repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

62. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

63. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- A. arresting individuals regardless of probable cause in order to inflate the officer’s arrest statistics; and,
- B. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,

- C. executing search warrants and arresting any and all individuals in said premises regardless of individualized probable cause; and,
- D. fabricating evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,
- E. arresting individuals regardless of probable cause in order to deprive individuals of their right to freedom of speech under the First and Fourteenth Amendments and/or in retaliation for individuals exercising their First Amendment rights; and,
- F. strip searching individuals without an individualized reasonable suspicion that they are concealing weapons, drugs, and/or contraband based on the particular characteristics of the individual and/or the circumstances of the arrest; and,
- G. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and,
- H. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.

64. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the plaintiffs.

65. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the plaintiffs as alleged herein.

66. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the plaintiffs as alleged herein.

67. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the plaintiffs' constitutional rights.

68. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiffs' constitutional rights.

69. The acts complained of deprived the plaintiffs of their rights:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. Not to have summary punishment imposed upon them; and
- D. To receive equal protection under the law.

PENDANT STATE CLAIMS

70. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

71. On or about May 13, 2019, and within (90) days after the claim herein accrued, the plaintiff duly served upon, presented to and filed with defendant THE CITY OF NEW YORK, a Notice of Claim setting forth all facts and information required under the General Municipal Law § 50 (e).

72. Defendant THE CITY OF NEW YORK has wholly neglected or refused to make an adjustment or payment thereof and more than thirty (30) days have elapsed since the presentation of such claim as aforesaid.

73. Defendant THE CITY OF NEW YORK demanded a hearing pursuant to General Municipal Law § 50-h and said hearing was held on September 12, 2019.

74. This action was commenced within one (1) year and ninety (90) days after the causes of action herein accrued.

75. Plaintiff has and/or will comply with all conditions precedent to maintaining the instant action.

76. This action falls within one or more of the exceptions as outlined in C.P.L.R. § 1602.

FIRST CLAIM FOR RELIEF UNDER N.Y. STATE LAW
ASSAULT

77. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

78. Defendants KASAJI and/or POLICE OFFICERS “JOHN DOE” #1-10’s aforementioned actions placed plaintiff in apprehension of imminent harmful and offensive bodily contact.

79. As a result of defendants’ KASAJI and/or POLICE OFFICERS “JOHN DOE” #1-10 conduct, plaintiff has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

SECOND CLAIM FOR RELIEF UNDER N.Y. STATE LAW
BATTERY

80. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

81. Defendant police officers KASAJI and/or POLICE OFFICERS “JOHN DOE” #1-10 touched plaintiff in a harmful and offensive manner.

82. Defendant police officers KASAJI and/or POLICE OFFICERS “JOHN DOE” #1-10 did so without privilege or consent from plaintiff.

83. As a result of defendants' KASAJI and/or POLICE OFFICERS "JOHN DOE" #1-10 conduct, plaintiff has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

THIRD CLAIM FOR RELIEF UNDER N.Y. STATE LAW
FALSE ARREST

84. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

85. Defendant police officers KASAJI and/or POLICE OFFICERS "JOHN DOE" #1-10 arrested plaintiff in the absence of probable cause and without a warrant.

86. As a result of the aforesaid conduct by defendants KASAJI and/or POLICE OFFICERS "JOHN DOE" #1-10, plaintiff was subjected to an illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained, confined, incarcerated and prosecuted by the defendants in criminal proceedings. The aforesaid actions by the defendants constituted a deprivation of the plaintiff's rights.

FOURTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
FALSE IMPRISONMENT

87. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

88. As a result of the foregoing conduct by defendants KASAJI and/or POLICE OFFICERS "JOHN DOE" #1-10, plaintiff was falsely imprisoned, his liberty was restricted for an extended period of time, he was put in fear for his safety, and humiliated and subjected to handcuffing and other physical restraints.

89. Plaintiff was conscious of said confinement and did not consent to same.

90. The confinement of plaintiff was without probable cause and was not otherwise privileged.

91. As a result of the aforementioned conduct, plaintiff has suffered physical and mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

FIFTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

92. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

93. The aforementioned conduct by defendants KASAJI and/or POLICE OFFICERS "JOHN DOE" #1-10 was extreme and outrageous, and exceeded all reasonable bounds of decency.

94. The aforementioned conduct was committed by defendants KASAJI and/or POLICE OFFICERS "JOHN DOE" #1-10 while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

95. The aforementioned conduct was committed by defendants KASAJI and/or POLICE OFFICERS "JOHN DOE" #1-10 while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

96. The aforementioned conduct was intentional and done for the sole purpose of causing severe emotional distress to plaintiff.

97. As a result of the aforementioned conduct, plaintiff suffered severe emotional distress and physical and mental injury together with embarrassment, humiliation, shock, fright and loss of freedom.

SIXTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
NEGLIGENT HIRING/TRAINING/SUPERVISION/RETENTION

98. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

99. Defendant CITY OF NEW YORK selected, hired, trained, retained, assigned and supervised all members of its Police Department, including the defendants individually named above.

100. Defendant CITY OF NEW YORK was negligent and careless when it selected, hired, trained, retained, assigned, and supervised all members of its Police Department including the defendants individually named above.

101. Due to the negligence of the defendants as set forth above, plaintiff suffered physical and mental injury, pain and trauma, together with embarrassment, humiliation shock, fright, and loss of freedom.

WHEREFORE, plaintiffs respectfully request judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

Dated: New York, New York
February 3, 2020

BY: _____/S_____
ILYSSA FUCHS
GERALD COHEN
JOSHUA FITCH
COHEN & FITCH LLP

Attorneys for Plaintiff
225 Broadway, Suite 2700
New York, N.Y. 10007
(212) 374-9115

ATTORNEY'S VERIFICATION

ILYSSA S. FUCHS, an attorney duly admitted to practice law in the Courts of the State of New York, states:

That she is a member of the law firm of COHEN & FITCH, LLP the attorneys for the plaintiff QUASEEM TALBOT in the within entitled action.

That your deponent has read the foregoing **COMPLAINT** and knows the contents thereof, and that the same is true to her own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, she believes it to be true.

That the source of the deponent's information are investigation and records in the file.

That the reason why the verification is made by deponent and not by the plaintiff is that the plaintiff is not within the county wherein deponent maintains her office.

Deponent affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
February 3, 2020

_____/S_____
ILYSSA S. FUCHS